

वस्तु और सेवा कर आसूचना महानिदेशालय कोलकाता जोनल यूनिट ४/२, कराया रोड, कोलकाता - ७०००१७ फ़ोन-२२८९९५९, फ़ैक्स: २२८९९५८		DIRECTORATE GENERAL OF GOODS & SERVICES TAX INTELLIGENCE KOLKATA ZONAL UNIT 4/2, KARAYA ROAD, KOLKATA-700 017 TEL.-(033) 2289-1959, 2283-3571, FAX - (033) 2289-1958/2289-1977 Email:dggi-kzu@gov.in
---	---	--

TO: Principal Director General, DGGI, New Delhi

FROM: Principal Additional Director General, DGGI, KZU, Kolkata

File No: DGGI/INV/GST/1288/2023-Gr D /6054

Date: 24/6/24

INCIDENT REPORT

335J CIN- 72 /2024-25

Name of the assessee & address	M/s. Maharaja Ispat Private Limited, Maharaja Ispat Complex, Opposite PCBL More, Karanga Para Road, Durgapur, Bardhaman, West Bengal, Pin-713212
GSTIN(s) No.	19AAFCM2035H1ZL
State(s) / Union Territory(ies)	West Bengal
Commodity	Iron & Steel goods etc. (HSN-72)
Service	NA
Modus Operandi	i)Availing, Utilizing and Passing On of irregular ITC without supply of any goods and/or services ii)Clandestine Removal of Goods
DIGIT Entry No.	DIGIT- 20240701115950-653
Amount of Tax involved (Rs. in Crores)	Rs. 4.12 crores (approx.) on the above mentioned two issues- i) Rs. 3.94 Crores (ITC Availed Rs. 1.88 Cr and Passed-On Rs. 1.89 Crores, ITC Availed & Utilized Rs. 0.08 Cr) ii) Rs. 0.17 Crores
Voluntary Deposit (Rs. in Crores)	Rs. 0.20 Crores (approx.) including penalty on the issue of (ii) Clandestine Removal of Goods
No. of persons arrested along with names, passport / Aadhar details	NA
Source of Intelligence	Intelligence gathered and developed by the officers of DGGI, Kolkata Zonal Unit

01. Intelligence gathered and further developed by the officers of DGGI, Kolkata Zonal Unit indicated that M/s. Maharaja Ispat Private Limited (hereafter referred as M/s MIPL), engaged in manufacturing and supply of Iron & Steel goods, had an office premises in Kolkata which was not

declared in GST Portal and availed and utilized irregular Input Tax Credit (ITC) on the strength of fake/bogus invoices issued by non-existent/fictitious entities.

02. Accordingly, investigation was initiated under Search mode with approval of DG, SNU-East, DGGI and during the search, from various records of M/s MIPL, it appeared that total ITC amounting to Rs. 1,88,21,366/- from non-existent/fictitious entities was availed by M/s MIPL for trading of goods (TMT) and further those items (TMT) were traded by M/s MIPL & ITC amounting to Rs. 1,89,76,974/- was passed on to other entities. It also appeared that ITC amounting to Rs. 8,47,944/- from non-existent/fictitious entities was availed and utilized by M/s MIPL.

03. As per Joint Stock Accounts Statement dated 08.06.2024 there was a shortage of 176.712 MT of finished goods/raw materials, viz. ERW Pipe & Tubes (Finished Goods), Coils (Raw Materials) and the tax amount involved was to the tune of Rs. 17,45,438/-. Accepting their liability, M/s MIPL have made payments of Rs. 17,45,438/- (tax) and Rs. 2,61,816/- (penalty) vide DRC03 dated 08.06.24 on the issue of Stock shortage.

04. Estimated total evasion of GST is around Rs. 4.12 crores (approx.).

05. Further investigation is in progress.

**Signed by Kakarlapudi
Venkata Vijaya Gopala
Diwakar
Date: 20-06-2024 17:45:32**

(K.V.V.G. Diwakar)
Pr. Additional Director General
DGGI, KZU

File No: DGGI/INV/GST/1288/2023-Gr D / 6054 to 6062 Date: 24/6/24

Copy forwarded for information to:-

1. The Director General, DGGI, SNU-EAST/WEST/NORTH/SOUTH.
2. The Pr. Chief Commissioner, Central tax, Kolkata CGST & CX Zone.
3. The Pr. ADG/ADG, DGGI (All zonal units).
4. The Commissioner – CGST & CX Commissionerate – Bolpur, GST Bhawan, Nanoor Chandidas Road, Sian, Bolpur, Dist. Birbhum (W.B), PIN-731204
5. Central Economic Intelligence Bureau, Janpath Bhavan, "B" Wing, 6th Floor, New Delhi- 110001.
6. Statistical Section, DGGI, KZU for record.